Australian Government
Australian Pesticides and Veterinary Medicines Authority

PERMIT TO ALLOW SUPPLY AND MINOR USE OF AN UNREGISTERED AGVET CHEMICAL PRODUCT FOR CONTROL OF PSEUDOMONAS SYRINGAE PV. ACTINIDIAE (PSA) IN KIWIFRUIT

PERMIT NUMBER – PER92954

This permit is issued to the Permit Holder in response to an application granted by the APVMA under section 112 of the Agvet Codes of the jurisdictions set out below. This permit allows a Supplier (as indicated) to possess the product for the purposes of supply and to supply the product to a person who can use the product under permit. This permit also allows a person, as stipulated below, to use the product in the manner specified in this permit in the designated jurisdictions. This permit also allows the Permit Holder, the Supplier (if not one and the same) and any person stipulated below to claim that the product can be used in the manner specified in this permit.

THIS PERMIT IS IN FORCE FROM 31 JULY 2023 TO 31 JULY 2030

Permit Holder:
SEEKA AUSTRALIA PTY LTD
C/o – AGAWARE CONSULTING PTY LTD
21 Rosella Avenue
STRATHFIELDSAYE VIC 3551

Supplier:
I K CALDWELL AGNVET
7 – 15 Gundah Road
MOUNT KURING-GAI NSW 2080

Persons who can use the product under this permit:
Persons generally.

CONDITIONS OF USE

Products to be used:
ACTIGARD PLANT ACTIVATOR
AN UNREGISTERED PRODUCT
Containing: 500 g/kg ACIBENZOLAR-S-METHYL as the only active constituent.

RESTRAINT:
DO NOT apply between flowering and harvest.
DO NOT apply if heavy rains or storms are forecast within 3 days.
DO NOT irrigate to the point of field runoff for at least 3 days after application.
DO NOT handle more than 2 kg product per day (do not spray more than 10 ha per day) when applying the product by open cab tractor/ ground-spray equipment.
DO NOT apply by aerial spraying.
DO NOT apply by fogger.
DO NOT apply by handheld equipment.

SPRAY DRIFT RESTRAINTS:
Specific definitions for terms used in this section can be found at apvma.gov.au/spraydrift

DO NOT allow bystanders to come into contact with the spray cloud.

DO NOT apply in a manner that may cause an unacceptable impact to native vegetation, agricultural crops, landscaped gardens and aquaculture production, or cause contamination of plant or livestock commodities, outside the application site from spray drift. The buffer zones in the relevant buffer zone table/s below provide guidance but may not be sufficient in all situations. Wherever possible, correctly use application equipment designed to reduce spray drift and apply when the wind direction is away from these sensitive areas.

DO NOT apply unless the wind speed is between 3 and 20 kilometres per hour at the application site during the time of application.

DO NOT apply if there are hazardous surface temperature inversion conditions present at the application site during the time of application. Surface temperature conditions exist most evenings one to two hours before sunset and persist until one to two hours after sunrise.

DO NOT apply by airblast sprayer unless the following requirements are met:

- spray is not directed above the target canopy
- the outside of the sprayer is turned off when turning at the end of rows and when spraying the outer row on each side of the application site.
- for dilute water rates up to the maximum listed for each type of canopy specified, minimum distances between the application site and downwind sensitive areas (see 'Mandatory downwind buffer zones' section of the following table titled 'Buffer zones for vertical sprayers') are observed.

DO NOT apply by airblast unless a mandatory **bystander buffer zone of 15 metres** is observed.

Directions for Use:

Crop	Disease	Rate
Kiwifruit	PSA (*Pseudomonas syringae* p.v *actinidiae*)	20 g / 100 L Apply a maximum of 200 g product / ha

Critical Use Comments:

- Apply by foliar application, using an air-blast sprayer or equivalent.
- Apply by dilute application (high volume). Ensure thorough wetting of the crop without run-off. For concentrate spraying, adjust the dilution rate accordingly.
- Apply Actiguard preventatively to actively growing plants. Start applications any time after harvest through to flowering in the following spring. Apply immediately post-harvest, then if canopy allows (i.e. green leaf remains) a further application 21 days later. Two spring applications are recommended from 25 mm leaf diameter.
- DO NOT apply more than 4 applications per season.
- DO NOT apply less than 21 days after the last application.
- Only apply Actiguard to actively growing plants free of any stresses, including drought, excessive moisture, cold weather or disease.
- In regions where the disease has not previously been known, growers should confirm identification of PSA before using ACTIGARD.
  If PSA is suspected, growers/consultants should call the Exotic Plant Pest Hotline on 1800 084 881.
  In NSW, growers/consultants should also email clear photos with a brief explanation and contact details to biosecurity@dpi.nsw.gov.au.
- For additional directions and precautions, refer to label directions at **Attachment 1**.

Withholding Period:
Harvest: Not required when used as directed.
Grazing: Do not graze treated orchards or cut treated area for stock food.

First Aid Instructions:
If poisoning occurs, contact a doctor or Poisons Information Centre. Phone Australia 13 11 26.

Safety Directions:
Harmful if inhaled. Will irritate the skin. May irritate the eyes. Repeated exposure may cause allergic disorders.
Do not inhale dust or spray mist. Avoid contact with eyes and skin. If product on skin, immediately wash area with soap and water.
When opening the container and preparing spray, wear elbow-length chemical resistant gloves, faceshield, cotton overalls buttoned to the neck and wrist, a rubber or PVC apron, socks and closed shoes and a washable hat.
When applying the prepared spray using open cabin tractor/ground-spray equipment, wear elbow-length chemical resistant gloves, faceshield, cotton overalls, over normal clothing, buttoned to the neck and wrist, socks and closed shoes and a broad brim washable hat with neck flap.
When applying the prepared spray using closed cabin tractor/ground-spray equipment, wear cotton overalls buttoned to the neck and wrist (or equivalent clothing) and chemical resistant gloves.
Wash hands after use. After each day's use, wash gloves, faceshield, apron, hat and contaminated clothing.

Re-Entry:
DO NOT enter treated areas until the spray has dried, unless wearing cotton overalls buttoned to the neck and wrist (or equivalent clothing) and chemical resistant gloves. Clothing must be laundered after each day's use.

Protection of Wildlife, Fish, Crustaceans and Environment
Very toxic to aquatic life. DO NOT contaminate wetlands or watercourses with this product or used containers.

Jurisdiction:
All States and Territories.

Additional Conditions:
This permit allows for the use of a product in a manner specified on the permit. Persons who wish to prepare for use and/or use products for the purposes specified in this permit must read, or have read to them, the details and conditions of this permit. Unless otherwise stated, the use of the product must be in accordance with the product label at **Attachment 1**.

The holder of the permit must notify the APVMA of new information, including relevant information in accordance with section 161 of the Schedule to the *Agricultural and Veterinary Chemicals Code Act 1994*, in accordance with the obligation imposed by that section.

Supply
The supplier must supply the product in a container that complies with the requirements of section 18 of the Agricultural and Veterinary Chemicals Code Regulations. Attached to this container must be a label which is identical in content and format to the label at **Attachment 1**.

Prior to supply, the supplier must ensure the product is overstickered to replace the New Zealand signal word (Warning), using the signal heading for schedule 7 products in Australia: DANGEROUS POISON

The supplier must provide a copy of the permit each time the product is supplied.

Record keeping
Maintain records of all treatments performed under this permit. Details must include the date and locations where treatments occurred, the total amount of product used, and the names and addresses of the persons undertaking the use. These details must be maintained for a minimum period of two years from the date of expiry of this permit, and must be made available to the APVMA upon request.

To Avoid Crop Damage
The sensitivity of the crop to be treated under this permit has not been fully evaluated. It is advisable to only treat a small area to ascertain the reaction before treating the whole crop.

Export of treated produce
Temporary Maximum Residue Limits (TMRLs) have been established to allow treated produce to be used for human consumption. A TMRL has been established for ACIBENZOLAR-S-METHYL in KIWIFRUIT. TMRLs can be found in the *Agricultural and Veterinary Chemicals (MRL Standard for Residues of Chemical Products) Instrument 2023*. TMRLs apply only to produce marketed and consumed in Australia. If treated produce is to be exported, residues must not exceed the limits/tolerances of the importing country.

Issued by the Australian Pesticides and Veterinary Medicines Authority
Note: 01/07/2025 - Expiry extended to 31/07/2030. Permit issued as version 2.

DANGEROUS POISON

KEEP OUT OF REACH OF CHILDREN

Actigard®

Plant Activator

syngenta.

Active Ingredient:
ACTIGARD contains 500 g/kg ACIBENZOLAR-S-METHYL in the form of a water dispersible granule.

Stimulates systemic acquired resistance reducing the symptoms of Psa (Pseudomonas syringae pv. actinidiae) *in Kiwifruit*

Net Contents: 1 to 20 kg

Registered pursuant to the ACVM Act 1997, No. P8487.
See www.foodsafety.govt.nz/industry/acvm/ for registration conditions

Approved pursuant to the HSNO Act 1996, Approval Code HSR100588.

Syngenta Crop Protection Limited
Tower 2, Level 7, 110 Symonds Street, Auckland

™

Attachment 1

PLEASE READ THE LABEL COMPLETELY BEFORE USE
This product MUST NOT be used for any purpose or in any manner contrary to the controls and conditions of this registration.

HSNO Classifications 6.5B, 6.9B, 9.1B

WARNING
May cause sensitisation from prolonged skin contact.
May cause haematological damage from repeated oral exposure at high doses.
Toxic to aquatic organisms.

PRECAUTIONS
Store in original container, tightly closed, away from foodstuffs.
When mixing, loading or applying wear full protective clothing, including faceshield, waterproof gloves and footwear.
Avoid contact with skin and eyes and inhalation of spray mist.
If clothing becomes contaminated with product, remove clothing immediately.
DO NOT eat, drink or smoke while using.
Wash hands and face before eating, drinking or smoking and after work.
Wash protective clothing daily after work.
Apply with well maintained and calibrated spray equipment.
Re-entry Period: If re-entry work is required within 12 hours of application of ACTIGARD, personal protective equipment (ie gloves) shall be worn. Public access shall NOT be permitted during this period.
Application and storage should be as described in the Management of Agrichemicals NZS8409.
If carried on a passenger service vehicle, the maximum quantities must not exceed 3 kg per package.
Avoid contamination of any water supply with chemical or empty container.

Container disposal: Ensure the container is empty. Triple rinse empty container and add rinsate to the spray tank. Recycle empty container through Agrecovery (0800 247 326, www.agrecovery.co.nz). Otherwise crush and bury in a suitable landfill. DO NOT reuse this container for any other purpose.
Product disposal: Dispose of this product only by using according to the label, or at an approved landfill or other approved facility.

FIRST AID
If SWALLOWED, DO NOT induce vomiting. Rinse Mouth.
If SKIN or HAIR contact occurs, remove contaminated clothing and flush skin and hair with running water. DO NOT scrub the skin.
If splashed in the EYES, wash out immediately with water. Rinse cautiously with water for several minutes. Remove contact lenses, if present and easy to do. Continue rinsing. If eye irritation persists get medical advice/attention.
If INHALED, move the victim to fresh air immediately.
Begin artificial respiration if breathing has stopped. Use mouth to nose rather than mouth to mouth. Obtain medical attention. Take to hospital without delay.
For advice, contact the National Poisons Centre 0800 POISON (0800 764 766) or a doctor. If medical advice is needed, have product container or label at hand.

SPILLAGE
Wear suitable protective clothing including face shield, impervious gloves and boots. Prevent the product or spilled material from entering water bodies. Absorb liquid spills with inert material and place in waste containers. Wash area with water and absorb with further inert material. Dispose of safely.

GENERAL INFORMATION

ACTIGARD is a plant activator with a unique mode of action which stimulates the natural systemic acquired resistance (SAR) response found in most plant species. ACTIGARD has no direct activity against target pathogens, but helps to reduce Psa symptoms in kiwifruit by inducing host plant resistance.

DIRECTIONS FOR USE

It is an offence to use this product on animals.

Restriction:

To restrict the level of risk to the environment, DO NOT apply more than 4 applications of ACTIGARD per year in total.

Crop	Disease	Rates	Critical Comments
Kiwifruit	Psa (*Pseudomonas syringae pv. actinidiae)*	**FOLIAR**: Apply 20 g/100L as a dilute application. Do NOT exceed 200 g of ACTIGARD/ha on a full crop canopy. The rate suggested is for high volume spraying to thoroughly wet the crop without run off. For concentrate spraying, adjust dilution rate accordingly.	Apply ACTIGARD preventively to actively growing plants as a foliar application. DO NOT apply ACTIGARD to plants that are stressed due to drought, excessive moisture, cold weather or disease. ACTIGARD must be used as part of a Psa management program. Refer to the latest Zespri Crop Protection program and Kiwigreen Best Practice guidelines for more information. <u>Foliar Application</u> Ensure thorough coverage. Apply a maximum of 4 sprays at 21 day intervals.

MINISTRY FOR PRIMARY INDUSTRIES
NEW ZEALAND
09/12/2019

MIXING

Add the required amount of ACTIGARD to the partly filled spray tank, then add the remainder of the water while thoroughly agitating. Continue agitation while spraying. DO NOT let the spray mixture stand overnight in the spray tank.

COMPATIBILITY

ACTIGARD is compatible with commonly used insecticides and fungicides (including coppers) used on Kiwifruit, however, all mixtures should be tested prior to use.

WITHHOLDING PERIOD

It is an offence for users of this product to cause residues exceeding the relevant MRL in the Food Notice: Maximum Residue Levels for Agricultural Compounds.

Kiwifruit - Foliar applications ..... DO NOT apply between flowering and harvest.

For export crops – contact your exporter or Industry crop adviser.

STORAGE

Store in a cool, dry place and protect from sunlight. See safety data sheet for additional storage information. Stores containing 1000 kg or more require signage and secondary containment.

SAFETY DATA SHEET

If additional hazard information is required, refer to the Safety Data Sheet. For a copy, visit our website at www.syngenta.co.nz

Attachment 1

DISCLAIMER

This product complies with the specifications in its statutory registration. Implied terms and warranties are excluded. Syngenta's liability for breach of the express or any non-excludable implied warranty is limited to product replacement or purchase price refund. The purchaser must determine suitability for intended purpose and take all proper precautions in the handling, storage and use of the product including those on the label and/or safety data sheet failing which Syngenta shall have no liability.

Distributed by and registered to Syngenta Crop Protection Limited, Tower 2, Level 7, 110 Symonds Street, Auckland.

Product names marked ® or ™, the ALLIANCE FRAME
the SYNGENTA Logo and the PURPOSE ICON
are Trademarks of a Syngenta Group Company

Bar Code

Batch Number	
Date of Manufacture	

UN 3077
ENVIRONMENTALLY HAZARDOUS SUBSTANCE, SOLID, N.O.S.
(ACIBENZOLAR-S-METHYL) MARINE POLLUTANT.
PACKING GROUP III, HAZCHEM 2X
CONTAIN SPILLAGE

In a transport emergency dial 111, Police or Fire Brigade.
For specialist advice in an emergency only, call 0800 734 607 (24 hours).